

24PR00504 Conservatorship of Liliana Gonzalez

County: santa-barbara

Division: Conservatorship

Department: 2 SM-Cook

Hearing date: 2026-06-23

Motion: Conservatorship of Liliana Gonzalez

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/24pr00504-4>

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Tentative Ruling: Conservatorship of Liliana Gonzalez

Case Number

24PR00504

Case Type

Conservatorship

Hearing Date / Time

Tue, 06/23/2026 - 09:00

Nature of Proceedings

Conservatorship of Liliana Gonzalez

Tentative Ruling

Probate Notes:

Appearances required.

The following must be addressed:

Discrepancy no. 1 – Many entries in Schedule C fail to list both payee AND purpose, and the purposes that are listed are not descriptive enough to give the Court information necessary to determine the reasonableness and necessity of the disbursements. Please submit supplement explaining the following purposes:

All "Hum Comphen" and "Humana" disbursements.

Discrepancy no. 2 – Several unusual expenditures were not explained. A supplement to the petition must be filed explaining the following unusual expenditures, including the nature and purpose of the expenditure in sufficient detail to allow the court to analyze the necessity of the expenditure (Prob. Code, § 1064(a)(2)):

DATE

PAYEE

AMOUNT PAID

Multiple dates

Ross, Marshalls, Amazon, JC Penny

\$3,050.21

Multiple dates

CCSB, LLC

\$15,273.73

Multiple dates

"caregiver expenses" paid to Jeannie Zoppo and Maria Alvarez

\$3,195

Multiple dates

"Transfer to Jeannie"

*Not calculated, but easily totals several thousand dollars.

Discrepancy no. 3 – Petitioner spent \$12,592.20 on groceries and \$1,485.49 on restaurants for the accounting period. This is excessive for one person and indicates the conservator is using the estate to provide food for more than just the conservatee. Several of the restaurant charges show the purchase was for more than one person. According to the USDA Food Plans, the Cost of Food for one person during the accounting period is \$233-258 per month.

(<https://www.fns.usda.gov/cnpp/usda-food-plans-cost-food-monthly-reports>) This means the amount the conservator exceeded the cost of food for the Conservatee by 3 times the recommended budget (\$4,291.40). Supplement should explain

why this occurred, and how the conservator plans to remedy this issue in the future.

Discrepancy no. 4 – Title on account does not reflect the conservatorship. (CRC 7.1059 (b)(7).) The account is currently held in joint tenancy between the Conservator and Conservatee. The Account must be held in care of the Conservatee only. Supplement must show that title to the account was changed to reflect being held in the name of the conservatorship (e.g. Jeannie Zoppo, Conservator of; Jeannie Zoppo in care of Liliana Gonzalez, Conservatee, etc.)

Please also note: Attorney for petitioner initially billed for interest of the attorney's fees. While the attorney retracted that request, it is relevant to note for all future accountings that interest on attorney's fees in Probate Court, especially in guardianships and conservatorships, does not begin to run until the Court orders the fees allowed. (See Estate of Beach (1975) 15 Cal.3d 623, 646. See also Palmer v. Gregg (1967) 65 Cal.2d 657, 661; Hilton v. McNitt (1957) 49 Cal.2d 79, 83.) Therefore, interest on attorney's fees should never be requested in practice.

Appearances:

The court is open to the public for court business. The court is also conducting hearings via Zoom videoconference.

Meeting ID: 160 543 3416

Passcode: 5053334

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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